

Predict, Surveil, and Suppress: AI Policing and the Criminalization of Pro-Palestinian Activism

On April 22, 2024, the NYPD, called in by NYU's administration, brutally arrested over 120¹ students, faculty, and community members in a student encampment protesting the Israeli occupation of Palestine, and calling for divestment from weapons manufacturers. Protests at NYU were among the hundreds² across the country, sparking discussion about student activism, free speech, and policing. The history of encampments on college campuses can be traced back to activists protesting the Vietnam War, where in 1968, students occupied five buildings at Columbia University.³ Both movements of 1968 and 2024 faced intense crackdowns and security. However, a major differentiation between the two is the significant evolution of surveillance technology across policing. With an increase in digital technologies and Artificial Intelligence (AI), law enforcement agencies now use tools such as predictive policing algorithms, dragnet surveillance systems, and large-scale data aggregation platforms, rather than *just* the traditional violent police tactics. Sociologist Sarah Brayne's *Predict and Surveil: Data, Discretion, and the Future of Policing* introduces many of these advancements through a case study of the Los Angeles Police Department (LAPD), yet the book predates the recent AI boom.⁴

¹ Ethan Hernandez, "120 Arrested in Student Encampment Protests at NYU," *NYU News*, April 23, 2024, <https://nyunews.com/news/2024/04/23/120-arrested-students-encampment/>.

² "Crowd Counting Blog: An Empirical Overview of Recent Pro-Palestine Protests at U.S. Schools," *Ash Center for Democratic Governance and Innovation*, accessed December 19, 2024, <https://ash.harvard.edu/articles/crowd-counting-blog-an-empirical-overview-of-recent-pro-palestine-protests-at-u-s-schools/>.

³ *NPR*, "Do Columbia's Pro-Palestinian Protests Resemble the Ones Against the Vietnam War?" *NPR*, April 26, 2024, <https://www.npr.org/2024/04/26/1247405879/do-columbias-pro-palestinian-protests-resemble-the-ones-against-the-vietnam-war>.

⁴ "The Artificial Intelligence Boom," *Washington University in St. Louis School of Engineering & Applied Science*, Fall 2023, <https://engineering.washu.edu/news/magazine/2023-fall/the-artificial-intelligence-boom.html>.

Brayne examines how modern surveillance technologies shape policing and institutional culture in the LAPD, however, her framework can be applied to understand the 2024 encampment protests, where predictive model surveillance enabled law enforcement agencies to track and target activists involved in protests. This paper will explore the impact of AI on policing and activism, both in the context of Brayne's analytical approach to data-driven surveillance and how these dynamics have been employed to monitor, control, profit off of, and ultimately suppress student activism.

Brayne opens *Predict and Surveil* by explaining that “to varying degrees, we are all subjects of digital surveillance,”⁵ highlighting how big data technologies do not just monitor the worst of criminals but rather everyday individuals in routine settings. This is especially exemplified through institutional monitoring on college campuses, where universities act as a “home, employer, healthcare provider, visa provider, place of worship, and much more,”⁶ placing students at risk for increased surveillance. Big data, which Brayne understands as a “data environment made possible by the mass digitization of information,”⁷ uses machine learning algorithms to generate predictions about an individual's behavior. In universities, this means that students' actions can be recorded and interpreted in ways that shape disciplinary, academic, and in many cases, legal consequences.

⁵ Sarah Brayne, *Predict and Surveil: Data, Discretion, and the Future of Policing* (New York: Oxford University Press, 2021), 2.

⁶ “Surveillance and Defense on Campus Protests,” *Electronic Frontier Foundation*, June 2024, <https://www.eff.org/deeplinks/2024/06/surveillance-defense-campus-protests>.

⁷ Brayne, *Predict and Surveil*, 3.

Considering the Trump administration's recent attempts to deport pro-Palestinian activists and the police crackdowns on encampments, many concerns about privacy, free speech, and autonomy arise. As Brayne investigates the history of policing and data as a racially biased system connected to slavery,⁸ it is critical to understand how the origins of privacy and data have been long tied to systems of control and surveillance. One example is the 1973 report *Records, Computers, and the Rights of Citizens*, in which historian Sarah Igo criticizes how it blurred “the distinction between the file and the person,” reducing citizens to what she refers to as “data subjects,” whose personal information is vulnerable to dehumanizing, automated decision-making.⁹

We can apply both Brayne and Igo's historical insights to understand surveillance practices on student activists today. In this case, it is international students who are targeted by the Trump Administration's AI-backed “Catch and Revoke” initiative. According to a 2025 report from Amnesty International,¹⁰ Babel X, a national security software developed by Babel Street, has been used to monitor and analyze the activities of international students engaged with pro-Palestinian protests. Using technologies such as sentiment analysis and pattern recognition—forms of predictive policing—Babel X analyzes personal data, including social media activity. This data is used to determine whether individuals are associated with what the government deems “risky activity.”¹¹

⁸ Ibid., 27.

⁹ Sarah E. Igo, “The Beginnings of the End of Privacy,” *The Hedgehog Review* (Spring 2015), <https://hedgehogreview.com/issues/too-much-information/articles/the-beginnings-of-the-end-of-privacy>.

¹⁰ “USA: Global Tech Made by Palantir and Babel Street Pose Surveillance Threats to Pro-Palestine Student Protesters, Migrants,” Amnesty International, August 2025, <https://www.amnesty.org/en/latest/news/2025/08/usa-global-tech-made-by-palantir-and-babel-street-pose-surveillance-threats-to-pro-palestine-student-protestors-migrants/>

¹¹ Ibid.

These strategies mirror the ones which Brayne explains in *Predict and Surveil*. For example, Operation LASER (Los Angeles Strategic Extraction and Restoration), managed under the LAPD, gathers intelligence to generate lists of chronic offenders for focused person-based policing.¹² Operation LASER also assigns risk scores to “chronic offenders” in order to predict the likelihood of future crimes and increase surveillance by law enforcement.¹³ Not only does this create a self-perpetuating cycle of policing, but it also relies only on data rather than tangible evidence of crime.

Both Operation LASER and Babel X are susceptible to bias. Operation LASER and its risk scores can reproduce many existing inequalities in communities that have been disproportionately targeted by law enforcement,¹⁴ whereas Babel X and its sentiment analysis also reinforce political and social biases.¹⁵ The U.S. Custom and Borders Protection (CBP)’s own Privacy Threshold analysis for Babel X shows that the software has been used specifically to target refugees, immigrants, and asylum seekers.¹⁶ By analyzing vast amounts of data, like social media posts, Babel X can target pro-Palestinian advocates. When AI systems are used to monitor online activity and personal data or analyze risk scores, they risk treating individuals as “data subjects.”¹⁷ Just as Operation LASER potentially leads to the arrests of “chronic offenders,”¹⁸ Babel

¹² Brayne, *Predict and Surveil*, 61.

¹³ *Ibid.*, 65.

¹⁴ Brayne, *Predict and Surveil*, 69.

¹⁵ “USA: Global Tech Made by Palantir and Babel Street,” *Amnesty International*.

¹⁶ EPIC. Privacy Threshold Analysis for Babel X (FOIA No. 20220516-1st Interim Production), 5. November 2024. <https://epic.org/wp-content/uploads/2024/11/EPIC-21-12-03-CBP-FOIA-20220516-1st-Interim-Production.pdf>

¹⁷ Igo, “The Beginnings of the End of Privacy.”

¹⁸ Brayne, *Predict and Surveil*, 62.

X revokes, deports, and detains those who AI surveillance systems deem as engaging with “terrorist activity.”¹⁹

While Brayne shows the implications of private and predictive policing models through the inequalities of the criminal justice system, I seek to understand the current issues of political repression through the lens of immigration enforcement. In comparison to the protests against the Vietnam War in 1968, the privatization and technologization of policing is a relatively newer development which we see both in *Predict and Surveil* and the 2024 pro-Palestinian protests. It is hardly coincidental or surprising that both the LAPD in Brayne’s case study²⁰ and the policing of encampments²¹ relied on private software company Palantir. For the LAPD, Palantir is a key tool, allowing them to use different visualization strategies in identifying patterns of police activity. However, Palantir’s real power lies in its ability to expand the LAPD’s data collection through incorporating external data sources.²² This data is not just collected from the LAPD but rather other government agencies and private data companies. Not only does this expand the reach of law enforcement, but it also creates new ways for agencies to bypass constitutional protections. As more personal information is digitized and linked across systems, the scope of surveillance increases exponentially. When a police department purchases services and data from private data brokers, like Palantir, it is with fewer legal constraints than accessing public data. For instance, Palantir can aggregate data from

¹⁹ “Babel Street Report: January-February 2025,” Babel Street, January–February 2025, <https://babel-street.files.svdcdn.com/production/PDF/BSRJanFeb2025-1.pdf?dm=1738790560>

²⁰ Brayne, *Predict and Surveil*, 7.

²¹ “USA: Global Tech Made by Palantir and Babel Street,” *Amnesty International*.

²² Brayne, *Predict and Surveil*, 41.

multiple sources, such as social media platforms, credit reports, and real estate data without the same level of transparency or accountability that is usually required for government-conducted surveillance.²³

This normalization of private sector data in policing becomes a major concern when thinking about pro-Palestinian protests, where private data can be used to track political activity and suppress dissent—all while tech companies like Palantir profit from the sale of such tools to law enforcement. In the same report from Amnesty International, the organization explains how Immigration and Customs Enforcement (ICE) paid Palantir \$30 million to manage deportation cases and create Immigration OS, an AI-backed tool used for “constant mass monitoring,” illustrating the intersection of private sector interests and state power.²⁴ As the Trump administration has increased its focus on aggressive immigration enforcement, ICE has also targeted student activists who have participated in the encampments or other forms of protests for Palestine. The high-profile case of Mahmoud Khalil exemplifies the real-life impacts of such private surveillance tools, showing how the data points are not merely abstract numbers, but actual individuals whose information is used to target and justify illegal actions such as deportation—ultimately creating a market for the tech companies that design these systems.

As my focus is on how predictive policing has been employed in the crackdowns of pro-Palestinian encampments, it is also important to note Palantir’s role in national security. More specifically, Palantir is not just aiding Israel in their war crimes against

²³ Ibid., 25.

²⁴ “USA: Global Tech Made by Palantir and Babel Street,” Amnesty International.

Gaza, but also profiting off of it through selling its AI-powered surveillance tools.²⁵

Again, it is not coincidental that the same software companies who are actively supporting ICE in their war on immigration and police suppression of student activism are also actively supplying tools for international warfare and genocide. Although Brayne mainly discusses U.S. surveillance, she also points out that the LAPD's impacts reach beyond domestic affairs, as their successful model has trained other agencies across the globe on how to manage big data.²⁶ All of these connections can be understood through Karen Hao's theory and subsequent title of her book, *Empire of AI*. While Hao focuses specifically on OpenAI, she explains that the rise of AI and its exploitation, contributions to warfare, and profit-driven motives, creates a new form of empire.²⁷ The expansion in surveillance infrastructure supported by AI companies should be considered when applying Hao's definition of the empire of AI.

A major point in *Predict and Surveil* is the LAPD's history of police brutality and targeting of marginalized communities, and how predictive policing can reproduce these inequalities and violence.²⁸ We can connect Israel's influence on the LAPD's use of force and mass surveillance technologies, as the ethnostate and LAPD have maintained a close relationship. Many American officers have been sent to Israel for training since 2002.²⁹ Additionally, the LAPD began to use Israeli spyware drone Hovermast—capable of facial

²⁵ "Companies Profiting from the Gaza Genocide," American Friends Service Committee, 2025 <https://afsc.org/gaza-genocide-companies>.

²⁶ Brayne, *Predict and Surveil*, 13.

²⁷ Justin Hendrix, "Decolonizing the Future: Karen Hao on Resisting the Empire of AI," *TechPolicy Press*, May 23, 2025, <https://www.techpolicy.press/decolonizing-the-future-karen-hao-on-resisting-the-empire-of-ai/>.

²⁸ Brayne, *Predict and Surveil*, 30.

²⁹ Kenneth Reich, "Preparing for Threat of Suicide Bombings - Los Angeles Times," *Los Angeles Times*, March 2, 2019, <https://www.latimes.com/archives/la-xpm-2002-jun-01-me-suicide1-story.html>.

recognition and large data collection—in 2014.³⁰ The same surveillance efforts that are used to occupy Palestinians are seen in the police departments in cities like Los Angeles and New York City. For example, New York City’s counterterrorism efforts—which spied on and targeted Muslim communities—were partially based on Israeli technology used to surveil Palestinians in the West Bank.³¹ Here, the cycles become endless. Israel, an imperial occupier, uses AI surveillance to maintain militaristic control of Gaza while those same technologies are then employed in the U.S. to repress protests against Israel’s aggression and occupation. The empire of AI is not a traditional form of imperial power, but rather a network of empires. In her example of digital apartheid in South Africa, through the policing of Black bodies, Hao shows how empires of inequality and violence are once again reproduced through AI rather than physical occupation. As she puts it, “There’s a broader, global system of power that is causing these stories to happen again and again.”³²

Another critical point of Hao’s profile of OpenAI is the problematic way in which the company frames itself as an accessible and unbiased algorithmic tool for humanity, which embodies the foundations of an empire: to present itself as a force for the greater good of the world, despite its true motives for profit and power. This way of thinking can be applied to Brayne’s analyses in *Predict and Surveil* as well as the targeting of student protesters through the use of AI. In all three examples—considered as a part of one larger

³⁰ “SAR WARS: Attack of the Drones - Stop LAPD Spying Coalition,” Stop LAPD Spying Coalition, June 21, 2014, <https://stoplapdspying.org/sar-wars-attack-of-the-drones/>.

³¹ Matt Apuzzo and Adam Goldman, *Enemies Within: Inside the NYPD’s Secret Spying Unit and Bin Laden’s Final Plot Against America* (New York: Simon and Schuster, 2014), 73

³² Hendrix, “Decolonizing the Future: Karen Hao on Resisting the Empire of AI.”

system—AI is seen as a tool for objectivity and transparency, when in reality it is the opposite. Brayne takes an in-depth look at this when considering the issue through an ethical lens. Though she mentions that surveillance technologies in the LAPD and other departments have opportunities to be used for good, like in “policing the police” to limit inequalities,³³ the realities are often bleak. In practice, systems of oppression are reproduced because of “unchecked predictions,” which “may lead to an algorithmic form of confirmation bias and, subsequently, a misallocation of resources.”³⁴ In today’s world, this takes the form of racial bias in machine learning and subsequent overpolicing in racialized communities.³⁵ It also manifests itself through the targeting of specific political activism, where detection models can potentially falsely flag individuals associated with terrorism rather than actual criminal behavior.

When considering global and national systems of data surveillance, how can individuals take steps to reclaim control over their personal information? I believe that this question is especially important for us to answer as we move to an age where the notions of free speech are consistently neglected and the most vulnerable are subject to violence and policing because of their beliefs. To end my discussion, I aim to consider these concerns to Brayne’s interesting observations on how police are incentivized to gather intelligence that they might not actually need. This can (and should) be understood as misinterpretation and misuse of data.³⁶ In applying this to the case of the encampment

³³ Brayne, *Predict and Surveil*, 101

³⁴ *Ibid.*, 109.

³⁵ “Covert Racism in AI: How Language Models Are Reinforcing Outdated Stereotypes | Stanford HAI,” September 4, 2023., <https://hai.stanford.edu/news/covert-racism-ai-how-language-models-are-reinforcing-outdated-stereotypes>.

³⁶ Brayne, *Predict and Surveil*, 67.

shut downs, governments, universities, and police departments have positioned the protests as violent or anti-Semitic. What does it mean for our society that is supposedly grounded in principles of free speech and equality where police can, as Brayne puts it, “always find something to stop someone for if [they] wanted to”?³⁷ Though the power has seemingly been placed in the hands of the universities, governments, police forces, and private data companies, we must reclaim our rights as citizens through collective control over our data. From the students mobilized against the occupation of Palestine and subsequent crackdowns on protests in the U.S. to the activists in Chile fighting against the construction of data centers³⁸ and for their autonomy, it is clear that resisting surveillance is a collective struggle for justice: one that demands solidarity and justice to ensure that technology serves the public rather than the empire of profit, control, and oppression.

³⁷ Ibid.

³⁸ Hendrix, “Decolonizing the Future: Karen Hao on Resisting the Empire of AI.”

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